

Second Regular Session
Seventy-fifth General Assembly
STATE OF COLORADO

ENGROSSED

*This Version Includes All Amendments Adopted
on Second Reading in the House of Introduction*

LLS NO. 26-0429.01 Lindy Schaible x4215

HOUSE BILL 26-1078

HOUSE SPONSORSHIP

Smith and Hamrick,

SENATE SPONSORSHIP

Marchman and Kirkmeyer, Bright

House Committees

Education
Appropriations

Senate Committees

A BILL FOR AN ACT

101 CONCERNING INCREASING THE NUMBER OF OFF-CAMPUS COURSES
102 OFFERED BY INSTITUTIONS OF HIGHER EDUCATION TO STUDENTS
103 IN CONCURRENT ENROLLMENT PROGRAMS, AND, IN CONNECTION
104 THEREWITH, MAKING AND REDUCING AN APPROPRIATION.

Bill Summary

(Note: This summary applies to this bill as introduced and does not reflect any amendments that may be subsequently adopted. If this bill passes third reading in the house of introduction, a bill summary that applies to the reengrossed version of this bill will be available at <http://leg.colorado.gov>.)

Under current law, off-campus courses offered by institutions of higher education (off-campus courses) are excluded from concurrent enrollment programs, except when the off-campus courses are part of the

Shading denotes HOUSE amendment. Double underlining denotes SENATE amendment.
Capital letters or bold & italic numbers indicate new material to be added to existing law.
Dashes through the words or numbers indicate deletions from existing law.

HOUSE
Amended 2nd Reading
April 17, 2026

teacher recruitment education and preparation (TREP) program. The bill allows off-campus courses to be included in concurrent enrollment programs when the off-campus courses meet the requirements for concurrent enrollment programs and the requirements of an accrediting agency recognized under federal law.

1 *Be it enacted by the General Assembly of the State of Colorado:*

2 **SECTION 1.** In Colorado Revised Statutes, 22-35-110, **amend**
3 (1) as follows:

4 **22-35-110. Exclusions.**

5 (1) ~~Except for courses offered as part of the TREP program~~
6 ~~pursuant to section 22-35-108.5,~~ This article 35 does not apply to ~~any~~ A
7 course that is offered as part of a program of off-campus instruction
8 established pursuant to section 23-1-109 (1) to (5) UNLESS THE COURSE
9 OFFERED MEETS ALL REQUIREMENTS OF THIS ARTICLE 35 AND THE
10 REQUIREMENTS OF AN ACCREDITING AGENCY RECOGNIZED BY THE UNITED
11 STATES DEPARTMENT OF EDUCATION.

12 **SECTION 2. Appropriation - adjustments to 2026 long bill.**

13 (1) Except as provided in subsection (2) of this section, to implement this
14 act, appropriations made in the annual general appropriation act for the
15 2026-27 state fiscal year to the department of higher education are
16 adjusted as follows:

17 (a) The general fund appropriation for the college opportunity
18 fund program to be used for fee-for-service contracts with state
19 institutions pursuant to section 23-18-303.5, C.R.S., is decreased by
20 \$80,178; and

21 (b) The reappropriated funds appropriation for the regents of the
22 university of Colorado received from the fee-for-service contracts with
23 state institutions pursuant to section 23-18-303.5, C.R.S., under

1 subsection (1)(a) of this section is decreased by \$80,178.

2 (2) Subsection (1) of this section does not require a reduction of
3 an appropriation in the annual general appropriation act for the 2026-27
4 state fiscal year if:

5 (a) The amount of the general fund appropriation made in the
6 annual general appropriation act for the 2026-27 state fiscal year to the
7 department of higher education for the college opportunity fund program
8 to be used for fee-for-service contracts with state institutions pursuant to
9 section 23-18-303.5, C.R.S., is less than the amount of the adjustment
10 required in subsection (1)(a) of this section; or

11 (b) The annual general appropriation act for the 2026-27 state
12 fiscal year does not include an appropriation to the department of higher
13 education for the college opportunity fund program to be used for
14 fee-for-service contracts with state institutions pursuant to section
15 23-18-303.5, C.R.S.

16 **SECTION 3. Appropriation.** (1) For the 2026-27 state fiscal
17 year, \$66,056 is appropriated to the department of education. This
18 appropriation is from the general fund. To implement this act, the
19 department may use this appropriation as follows:

20 (a) \$21,685 for use by school district operations for administration
21 related to public school finance, which amount is based on an assumption
22 that the division will require an additional 0.2 FTE; and

23 (b) \$44,371 for use by student pathways for postsecondary
24 workforce readiness administration, which amount is based on an
25 assumption that the division will require an additional 0.4 FTE.

26 **SECTION 4. Effective date.** This act takes effect upon passage;
27 except that section 2 of this act takes effect only if the annual general

1 appropriation act for the 2026-27 state fiscal year becomes law, in which
2 case section 2 takes effect upon the effective date of this act or of the
3 annual general appropriation act for state fiscal year 2026-27, whichever
4 is later.